

Getting TOUGH

The Government gets cracking and plans to set up a national investigating agency

Proposed NIA

- If the Centre thinks that a case is terror-related, it can suo moto direct the NIA for investigation
- Special courts for speedy trial and appointment of special prosecutors
- Proceedings to be held 'in camera' if necessary

UAPA Bill

- Detention of an accused up to 180 days instead of 90
- Stringent bail conditions. No bail without the prosecution being heard. No bail for a foreign terrorist.
- The accused presumed guilty if arms or explosives recovered from him and if there is reason to believe that these could have been or were used in a terrorist act, backed by forensic evidence
- Power to freeze, seize or attach funds and other financial assets of individuals or entities listed as terrorists and those who are suspected to be involved in terrorism.

Keen to establish his credentials as a home minister who means business, P. Chidambaram unveiled two bills in Parliament required to set up a national investigating agency (NIA) and to amend the Unlawful Activities Prevention Act (UAPA). The bills which aim to make laws on terror tougher were passed by the Lok Sabha on December 17, a prelude to their passage in the Upper House.

The UPA Government had been dithering on a national agency to investigate terror cases for a long time, under pressure from states which did not want their powers to be diluted. The Mumbai terror siege, however, made all such opposi-

tion expendable. Backed by Prime Minister Manmohan Singh and UPA Chairperson Sonia Gandhi, the home minister moved quickly—in a record 15 hours—to introduce the bills. The NIA Bill, 2008, seeks to provide for a central agency to "investigate and prosecute" offences related to sovereignty, security and integrity of the country including bomb blasts, hijacking of aircraft and ships and attacks on nuclear installations.

It got a further boost with the BJP and the Left supporting both the bills, albeit with some reservations. Taking credit, the BJP said that it was a vindication of its campaign for strong laws. As expected,

the Left parties had reservations about the redefinition of terrorism to include Naxalism and insurgency.

The home minister had been keen to bring in a new terror law but it was rejected by the Cabinet with dissenting voices within the Government and its allies. Among those who opposed a new law were RJD chief Lalu Prasad Yadav, JD(U) President Sharad Yadav and Lok Janshakti Party leader Ram Vilas Paswan. It was due to stiff opposition from them that the Government has been forced to drop two crucial elements from UAPA amendments as well—making confessions before a police officer admissible as evidence and putting the onus of proving innocence on the accused. During the Cabinet meeting, Lalu is reported to have said that "the Government had colluded with the BJP and was planning to introduce POTA in a new garb".

Legal experts, however, say making confessions of the accused admissible as evidence in the court is one of the crucial requirements of an anti-terror law. By keeping that out of the proposed amendments, the law will not have much teeth, only a snarl. An option was to retain and introduce sufficient safeguards.

The last straw was the disinclination of External Affairs Minister Pranab Mukherjee to include the stringent provisions. Sharing the concerns of the allies, he chose to go along with their call for limiting the legislative initiative on terror to an amendment to the UAPA. *by Bhavna Vij-Aurora*



RAJ KUMAR

CHIDAMBARAM